TCD 002/2024 Ahmed Mohamed Eid Al Yahad Al Zaabi v Al Buhaira National Insurance Company

OCTOBER 08, 2025 TECHNOLOGY AND CONSTRUCTION DIVISION - ORDERS

Claim No: TCD 002/2024

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

AHMED MOHAMED EID Al YAHAD AL ZAABI

Claimant/Appellant

and

AL BUHAIRA NATIONAL INSURANCE COMPANY

Defendant/Respondent

ORDER WITH REASONS OF H.E. JUSTICE ROGER STEWART KC

UPON the Judgment of H.E Roger Stewart KC dated 27 August 2025 giving judgment for the Defendant (the "Judgment")

AND UPON considering the Claimant's Appeal Notice dated 11 September 2025 seeking permission to appeal the Judgment at an oral hearing (the "Permission to Appeal Application")

AND UPON considering the Respondent's Written Submissions dated 6 October 2025 in opposition to the Permission to Appeal Application, filed by way of Application No. TCD-002- 2024/3

AND UPON review of all submissions on the Court file

AND UPON reviewing the Rules of the DIFC Courts (the "RDC")

IT IS HEREBY ORDERED THAT:

1. The request for an oral hearing for the Permission to Appeal Application is refused.

2. Permission to appeal is refused.

3. The Claimant is to pay the Defendant's costs of the Permission to Appeal Application to be assessed in accordance with the following matters.

4. The Defendant is to file and serve a Statement of Costs and any short submissions in support of the costs claimed within twenty-one (21) days of the date of these orders.

5. The Claimant shall provide any submissions in response to the costs claimed within fourteen (14) days of service of the Statement of Costs.

6. The Defendant is to provide any submissions in reply to the Claimant's response within seven (7) days of service of that response.

7. The quantum of costs to be paid by the Claimant to the Defendant will thereafter be assessed by way of immediate assessment on the papers.

Issued by:

Hayley Norton
Assistant Registrar
Date of issue: 8 October 2025
At: 12pm

SCHEDULE OF REASONS

1. The Claimant issued an Appeal Notice on 11 September seeking to appeal the judgment issued on 27 August 2025 and seeking an oral hearing. I treat it as an application for permission to appeal and a request that there be an oral permission hearing.

2. The relevant Rules include:

(a) RDC 44.19 that permission to appeal may only be given where the lower court or the appeal court considers that the appeal would have a real prospect of success or there is some other compelling reason why the appeal should be heard;

(b) RDC 44.16 that an application for permission to appeal not made orally to the lower Court at the hearing will ordinarily be decided without an oral hearing;

(c) RDC 44.17 that the appellant may request that permission to appeal be considered at an oral hearing supported by grounds as to why it would be in the interests of justice to do so;

(d) RDC 44.14(1) permitting a respondent to make written submissions in opposition to an application for permission to appeal;

(e) RDC 44.25 providing that the Court will normally allow the respondent his costs of an application for permission to appeal if permission to appeal is refused;

(f) RDC 44.28 which requires that subject to RDC 44.30, an appellant's notice must set out the grounds of appeal relied on and include or be accompanied by a skeleton argument; and

(g) RDC 44.31 which requires that the grounds of appeal must

(i) Set out clearly why it is said the decision of the lower Court was (a) wrong; or (b) unjust because of a serious procedural or other irregularity in the proceedings in the lower court;

(ii) Specify, in respect of each ground, whether the ground raises an appeal on a point of law or is an appeal against a finding of fact; and

(iii) State the orders sought on appeal.

3. The Appeal Notice is very far from being satisfactory. It runs to 6 pages. It refers throughout to the Judgment as an Arbitration Award. It appears that the Claimant does not understand the role and function of Courts of the DIFC. It also mistakenly considers that the jurisdiction of the DIFC Courts is in some way limited similarly to that of arbitrators (see paragraph 3-4 of the Appeal Notice).

4. Contrary to RDC 44.32 there is no clear identification of grounds of appeal, nor any clear indication as to why the decision of the lower court was wrong or whether each ground raises an appeal on a point of law or is an appeal against a finding of fact.

5. Further contrary to RDC 44.17 there is no identification of the grounds upon which it would be in the interests of justice for there to be an oral hearing of the permission hearing.

6. The Appeal Notice does not accurately summarise or grapple with the reasoning in the Judgment. Thus, by way of example, the document asserts that that "the arbitration panel… ruled to dismiss the plaintiff's case as the plaintiff was an unconvincing witness…" (see paragraph 1-6 of the Appeal Notice). This is not the case. Although the Judgment does explain why the Claimant was not a satisfactory witness, that was not the basis upon which judgment was entered for the Defendant.

7. Insofar as it is possible to identify the specific complaints made (as distinct from wholly general assertions), the Claimant appears particularly to object:

(a) To the findings as the intended commercial use of the vessel (paragraph 1-7);

(b) To the status of the Claimant as otherwise than a consumer (paragraph 2-2);

(c) To findings as to breach of warranty (see B);

(d) To finding as to the lack of a survey (see C);

(e) To the fact that no notice was sent of cancellation (see E);

(f) To the findings as to the location of the vessel relying on a document not made available to the Court below (see 3-18).

8. None of these objections deal in any real way with the reasoning in the judgment or the findings which support them. Further they do not identify any basis for finding that the Judgment contained any errors of law. By way of example only, the finding that the Claimant intended to use the vessel for

commercial purposes was based upon the Claimant's own statements together with the way in which he purchased the vessel and sought to renovate it. There is no realistic basis for thinking that the Court of Appeal will interfere with such a finding. Further, having made such a finding, it followed that the Claimant was not a consumer within the meaning of the relevant legislation.

9. So far as the other complaints are concerned:

(a) The findings of breach of warranty and the lack of a survey were explained in the Judgment together with their basis;

(b) No argument was made that the Defendant was obliged to give notice of cancellation and it appears that the Claimant misunderstands the nature of the contractual obligations; and

(c) The finding as to the location of the vessel was explained but the Claimant did not submit the contract now relied on and has made no application to adduce fresh evidence.

10. In all the circumstances I do not consider that an appeal has any real prospect of success or that there is any other compelling reason why an appeal should be heard.

11. No grounds have been identified as to why it would be in the interests of justice for there to be an oral permission hearing. I do not consider there to be any such grounds. An oral hearing would serve only to increase costs.

12. The Respondent is entitled to its costs of responding to the Application for Permission to Appeal, subject to an immediate assessment on the papers.